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take a gun outside the home in order to transfer ownership lawfully, which the City also allows. §5–26(j). And still another is to take a gun to a range in order to gain and maintain the skill necessary to use it responsibly. As we said in *Heller*, “‘to bear arms implies something more than the mere keeping [of arms]; it implies the learning to handle and use them in a way that makes those who keep them ready for their efficient use.’” 554 U. S., at 617–618 (quoting *T. Cooley*, *Constitutional Law* 271 (1880)); see also *Luis v. United States*, 578 U. S. 5, 26 (2016) (THOMAS, J., concurring in judgment) (“The right to keep and bear arms . . . ‘implies a corresponding right . . . to acquire and maintain proficiency in their use’”); *Ezell v. Chicago*, 651 F. 3d 684, 704 (CA7 2011) (“[T]he core right wouldn’t mean much without the training and practice that make it effective”).

It is true that a lawful gun owner can sometimes practice at a range using a gun that is owned by and rented at the range. But the same model gun that the person owns may not be available at a range, and in any event each individual gun may have its own characteristics. See Brief for Professors of Second Amendment Law et al. as *Amici Curiae* 10–12; see also App. 51, 56, 59 (referencing differences across ranges and shooting competitions). Once it is recognized that the right at issue is a concomitant of the same right recognized in *Heller*, it became incumbent on the City to justify the restrictions its rule imposes, but the City has not done so. It points to no evidence of laws in force around the time of the adoption of the Second Amendment that prevented gun owners from practicing outside city limits. The City argues that municipalities restricted the places within their jurisdiction where a gun could be fired, Brief for Respondents 18, and it observes that the Second Amendment surely does not mean that a New York City resident with a premises license can practice in Central Park or Times Square, *id.*, at 21. That is certainly true, but that is not the

question. Petitioners do not claim the right to fire weapons in public places *within the City*. Instead, they claim they have a right to practice at ranges and competitions *outside the City*, and neither the City, the courts below, nor any of the many *amici* supporting the City have shown that municipalities during the founding era prevented gun owners from taking their guns outside city limits for practice.

B

If history is not sufficient to show that the New York City ordinance is unconstitutional, any doubt is dispelled by the weakness of the City's showing that its travel restriction significantly promoted public safety. Although the courts below claimed to apply heightened scrutiny, there was nothing heightened about what they did.

As noted, the City relied entirely on the declaration of Inspector Lunetta, but this declaration provides little support. See *supra*, at 348–349. Some of what Inspector Lunetta asserted was simply not relevant to the justification for drawing a distinction between trips to a range in the City and trips to a range in a neighboring jurisdiction. For example, he stated that persons holding premises licenses “do not always transport their firearms in a locked box carrying ammunition separately, as required by NYPD rules,” but the issue in this case does not concern the storage of a gun on the way to a range. App. 77–78. Similarly, he declared that “[p]remises license holders have not demonstrated proper cause to carry a concealed firearm in public,” *id.*, at 78, but the question before us is not whether petitioners have the right to do what they could if they had carry licenses.

Other statements actually undermine the City's public safety rationale. Thus, the fact that prosecutors typically do not bring even misdemeanor charges against licensees who carry a weapon in violation of the limitations of their licenses, *ibid.*, does not suggest that the City regards violations as presenting a particularly significant threat to public safety.

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When all that is irrelevant is brushed aside, what remains are the three arguments noted earlier. First, Inspector Lunetta asserted that the travel restrictions discouraged licensees from taking their guns outside the home, but this is a strange argument for several reasons. It would make sense only if it is less convenient or more expensive to practice at a range in the City, but that contradicts the City's argument that the seven ranges in the City provide ample opportunity for practice. And discouraging trips to a range contradicts the City's own rule recommending that licensees practice. Once it is recognized that a reasonable opportunity to practice is part of the very right recognized in *Heller*, what this justification amounts to is a repudiation of part of what we held in that decision.

Second, Inspector Lunetta claimed that prohibiting trips to out-of-city ranges helps prevent a person who is taking a gun to a range from using it in a fit of rage after an auto accident or some other altercation that occurs along the way. And to bolster this argument, Inspector Lunetta asserted that persons who have met the City's demanding requirements for obtaining a premises license are just as likely as anyone else to use their guns in a fit of rage. App. 77. If that is so, it does not reflect well on the City's intensive vetting scheme, see *supra*, at 343–345, and in any event, the assertion is dubious on its face.

More to the point, this argument does not explain why a person headed for a range outside the City is any more likely to engage in such conduct than a person whose destination is a range in the City. There might be *something* to the argument if ranges in the City were closer than those just outside its borders, but the City never attempted to show that. The courts below were incurious about the validity of Inspector Lunetta's assertion, and given the location of the City's seven ranges, the assertion is more than dubious.¹²

¹²Two of the seven City ranges (28%) were located in Staten Island (home to under 6% of the City's residents), and the trip there from the other boroughs is not quick. Another range (the only one open to the

Inspector Lunetta's final justification for the travel restrictions was only marginally stronger. It goes like this. Suppose that a patrol officer stops a premises licensee and finds that this individual is carrying a gun, and suppose that the licensee says he is taking the gun to a range to practice or is returning from a range. If the range in question is one in the City, the officer will be better able to check the story than if the range is outside the officer's jurisdiction. App. 79–80.

How strong is this argument? The City presumably has access to records of cases in which licensees were cited for unauthorized possession of guns outside the home, and it failed to provide any evidence that holders of target licenses had used their right to practice at out-of-city ranges as a pretext. And it is dubious that it would be much harder for an officer to check whether a licensee was really headed for an out-of-city range as opposed to one in the City. If a licensee claims to be headed for a range in the City, the officer can check whether the range is open and whether the individual appears to be on a route that plausibly leads to that range. But how much more difficult would it be to do the same thing if the range is in one of the counties that border New York City or across the Hudson River in New Jersey? A phone call would be enough to determine the range's operating hours, and the route would still be easy to determine: There are only a few bridges and tunnels to New Jersey and just a few main thoroughfares to the neighboring New York counties. A court conducting any form of serious scrutiny would have demanded that the City provide some substantiation for this claim, but nothing like that was provided or demanded.

public) was located in the north Bronx. See Brief for Appellants in No. 15–638, p. 32 (CA2) (explaining that, for plaintiff Colantone, “traveling from his home in Staten Island to the authorized range Olinville Arms in the Bronx [involves] a far longer drive” than to a shooting club in New Jersey).

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Would the situation be much different if the individual claimed to be headed home from a range? Once again, it would not be difficult for the officer to check whether the range was or recently had been open. And it is not at all apparent that determining whether a licensee was on a route to his or her residence would be any harder if the range at which the licensee claimed to have practiced was outside the City.

Inspector Lunetta's declaration stated that ranges in the City are required to keep a record of everyone who practices there, and therefore if a person claims to be coming from a city range, the officer could easily check that story. But the declaration does not state that ranges in nearby jurisdictions do not keep similar records.¹³ It should have been easy enough for the City to check, and a court engaged in any serious form of scrutiny would have questioned the absence of evidence, but no substantiation was provided or demanded below.

In sum, the City's travel restriction burdened the very right recognized in *Heller*. History provides no support for a restriction of this type. The City's public safety arguments were weak on their face, were not substantiated in

¹³ Inspector Lunetta also expressed concern that officers in other jurisdictions might detect and report fewer license violations. App. 80. But Inspector Lunetta did not support this prediction, and his declaration gives reason to doubt whether a decrease in referrals will actually occur. Lunetta explains that the NYPD License Division already receives "reports from [the New York State Division of Criminal Justice System] regarding all arrests made within the State of New York for which an arrestee is fingerprinted." *Id.*, at 86. But "[n]o formal report is forwarded to the License Division for summonses and other arrests and incidents for which a detainee is not fingerprinted." *Ibid.* "[T]he License Division may be, but is not always, notified of an arrest" made by the Federal Government or authorities in another State. *Ibid.* By Lunetta's own account, the NYPD already appears reliant on the State fingerprinting database to detect violations in other jurisdictions. There is no reason to expect that database to be any less effective today in alerting the License Division to potential violations than it was under the old ordinance.

any way, and were accepted below with no serious probing. And once we granted review in this case, the City's public safety concerns evaporated.

We are told that the mode of review in this case is representative of the way *Heller* has been treated in the lower courts. If that is true, there is cause for concern.

* * *

This case is not moot. The City violated petitioners' Second Amendment right, and we should so hold. I would reverse the judgment of the Court of Appeals and remand the case to the District Court to provide appropriate relief. I therefore respectfully dissent.

Syllabus

UNITED STATES *v.* SINENENG-SMITHCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 19–67. Argued February 25, 2020—Decided May 7, 2020

Respondent Evelyn Sineneng-Smith operated an immigration consulting firm in San Jose, California. She assisted clients working without authorization in the United States to file applications for a labor-certification program that once provided a path for aliens to adjust to lawful permanent resident status. Sineneng-Smith knew that her clients could not meet the long-passed statutory application-filing deadline, but she nonetheless charged each client over \$6,000, netting more than \$3.3 million.

Sineneng-Smith was indicted for multiple violations of 8 U.S.C. § 1324(a)(1)(A)(iv) and (B)(i). Those provisions make it a federal felony to “encourag[e] or induc[e] an alien to come to, enter, or reside in the United States, knowing or in reckless disregard of the fact that such coming to, entry, or residence is or will be in violation of law,” § 1324(a)(1)(A)(iv), and impose an enhanced penalty if the crime is “done for the purpose of commercial advantage or private financial gain,” § 1324(a)(1)(B)(i). In the District Court, she urged that the provisions did not cover her conduct, and if they did, they violated the Petition and Free Speech Clauses of the First Amendment as applied. The District Court rejected her arguments and she was convicted, as relevant here, on two counts under § 1324(a)(1)(A)(iv) and (B)(i).

Sineneng-Smith essentially repeated the same arguments on appeal to the Ninth Circuit. Again she asserted a right under the First Amendment to file administrative applications on her clients’ behalf, and she argued that the statute could not constitutionally be applied to her conduct. Instead of adjudicating the case presented by the parties, however, the court named three *amici* and invited them to brief and argue issues framed by the panel, including a question never raised by Sineneng-Smith: Whether the statute is overbroad under the First Amendment. In accord with the *amici*’s arguments, the Ninth Circuit held that § 1324(a)(1)(A)(iv) is unconstitutionally overbroad.

Held: The Ninth Circuit panel’s drastic departure from the principle of party presentation constituted an abuse of discretion.

The Nation’s adversarial adjudication system follows the principle of party presentation. *Greenlaw v. United States*, 554 U.S. 237, 243. “[I]n both civil and criminal cases, . . . we rely on the parties to frame the

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issues for decision and assign to courts the role of neutral arbiter of matters the parties present.” *Ibid.*

That principle forecloses the controlling role the Ninth Circuit took on in this case. No extraordinary circumstances justified the panel’s takeover of the appeal. Sineneng-Smith, represented by competent counsel, had raised a vagueness argument and First Amendment arguments homing in on her own conduct, not that of others. Electing not to address the party-presented controversy, the panel projected that § 1324(a)(1)(A)(iv) might cover a wide swath of protected speech, including abstract advocacy and legal advice. It did so even though Sineneng-Smith’s counsel had presented a contrary theory of the case in her briefs and before the District Court. A court is not hidebound by counsel’s precise arguments, but the Ninth Circuit’s radical transformation of this case goes well beyond the pale. On remand, the case is to be reconsidered shorn of the overbreadth inquiry interjected by the appellate panel and bearing a fair resemblance to the case shaped by the parties. Pp. 375–380.

910 F. 3d 461, vacated and remanded.

GINSBURG, J., delivered the opinion for a unanimous Court. THOMAS, J., filed a concurring opinion, *post*, p. 382.

Eric J. Feigin argued the cause for the United States. With him on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Matthew Guarneri*, and *Scott A. C. Meisler*.

Mark C. Fleming argued the cause for respondent. With him on the brief were *Eric L. Hawkins*, *Thomas G. Sprankling*, *Alan E. Schoenfeld*, *Emily J. Barnet*, and *Beth C. Neitzel*.*

**Lawrence J. Joseph* and *Christopher J. Hajec* filed a brief for the Immigration Law Reform Institute as *amicus curiae* urging reversal.

Briefs of *amici curiae* urging affirmation were filed for the City and County of San Francisco et al. by *Dennis J. Herrera*, *Aileen M. McGrath*, *Erin Kuka*, and *Mark A. Flessner*; for Amnesty International by *Matthew S. Hellman*, *David A. Strauss*, and *Sarah M. Konsky*; for Asian Americans Advancing Justice | AAJC et al. by *Emily T. Kuwahara*, *Chiem D. Suzuki*, *Harry P. Cohen*, and *Niyati Shah*; for the Cato Institute by *Ilya Shapiro*; for the Electronic Frontier Foundation et al. by *David Greene*; for Immigration Representatives et al. by *William C. Perdue*, *Allon Kedem*, and *Sirine Shebaya*; for the National Association of Criminal De-

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JUSTICE GINSBURG delivered the opinion of the Court.

This case concerns 8 U. S. C. § 1324, which makes it a federal felony to “encourag[e] or induc[e] an alien to come to, enter, or reside in the United States, knowing or in reckless disregard of the fact that such coming to, entry, or residence is or will be in violation of law.” § 1324(a)(1)(A)(iv). The crime carries an enhanced penalty if “done for the purpose of commercial advantage or private financial gain.” § 1324(a)(1)(B)(i).¹

Respondent Evelyn Sineneng-Smith operated an immigration consulting firm in San Jose, California. She was indicted for multiple violations of § 1324(a)(1)(A)(iv) and (B)(i). Her clients, most of them from the Philippines, worked without authorization in the home health care industry in the United States. Between 2001 and 2008, Sineneng-Smith assisted her clients in applying for a “labor certification” that once allowed certain aliens to adjust their status to that of lawful permanent resident permitted to live and work in the United States. § 1255(i)(1)(B)(ii).

There was a hindrance to the efficacy of Sineneng-Smith’s advice and assistance. To qualify for the labor-certification dispensation she promoted to her clients, an alien had to be in the United States on December 21, 2000, and apply for certification before April 30, 2001. § 1255(i)(1)(C). Sineneng-Smith knew her clients did not meet the application-filing deadline; hence, their applications could not

fense Lawyers et al. by *Elliott Schulder* and *Stephen R. Sady*; for Religious Organizations by *Anton Metlitsky* and *Jeremy Girton*; and for The Rutherford Institute et al. by *Erin Glenn Busby*, *Lisa R. Eskow*, *Michael F. Sturley*, *John W. Whitehead*, *David D. Cole*, *Esha Bhandari*, *Cecillia D. Wang*, and *Nicole G. Berner*.

A brief of *amicus curiae* was filed for Eugene Volokh by *Mr. Volokh, pro se*.

¹ For violations of 8 U. S. C. § 1324(a)(1)(A)(iv), the prison term is “not more than 5 years,” § 1324(a)(1)(B)(ii); if “the offense was done for . . . private financial gain,” the prison term is “not more than 10 years,” § 1324(a)(1)(B)(i).

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put them on a path to lawful residence.² Nevertheless, she charged each client \$5,900 to file an application with the Department of Labor and another \$900 to file with the U. S. Citizenship and Immigration Services. For her services in this regard, she collected more than \$3.3 million from her unwitting clients.

In the District Court, Sineneng-Smith urged unsuccessfully, *inter alia*, that the above-cited provisions, properly construed, did not cover her conduct, and if they did, they violated the Petition and Free Speech Clauses of the First Amendment as applied. See Motion to Dismiss in No. 10-cr-414 (ND Cal.), pp. 7–13, 20–25; Motion for Judgt. of Acquittal in No. 10-cr-414 (ND Cal.), pp. 14–19, 20–25. She was convicted on two counts under § 1324(a)(1)(A)(iv) and (B)(i), and on other counts (filing false tax returns and mail fraud) she does not now contest. Throughout the District Court proceedings and on appeal, she was represented by competent counsel.

On appeal from the § 1324 convictions to the Ninth Circuit, both on brief and at oral argument, Sineneng-Smith essentially repeated the arguments she earlier presented to the District Court. See Brief for Appellant in No. 15–10614 (CA9), pp. 11–28. The case was then moved by the appeals panel onto a different track. Instead of adjudicating the case presented by the parties, the appeals court named three *amici* and invited them to brief and argue issues framed by the panel, including a question Sineneng-Smith herself never raised earlier: “Whether the statute of conviction is overbroad . . . under the First Amendment.” App. 122–124. In

² Sineneng-Smith argued that labor-certification applications were often approved despite expiration of the statutory dispensation, and that an approved application, when submitted as part of a petition for adjustment of status, would place her clients in line should Congress reactivate the dispensation. See Motion for Judgt. of Acquittal in No. 10-cr-414 (ND Cal.), p. 16.

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the ensuing do over of the appeal, counsel for the parties were assigned a secondary role. The Ninth Circuit ultimately concluded, in accord with the invited *amici*'s arguments, that §1324(a)(1)(A)(iv) is unconstitutionally overbroad. 910 F. 3d 461, 485 (2018). The Government petitioned for our review because the judgment of the Court of Appeals invalidated a federal statute. Pet. for Cert. 24. We granted the petition. 588 U. S. 948 (2019).

As developed more completely hereinafter, we now hold that the appeals panel departed so drastically from the principle of party presentation as to constitute an abuse of discretion. We therefore vacate the Ninth Circuit's judgment and remand the case for an adjudication of the appeal attuned to the case shaped by the parties rather than the case designed by the appeals panel.

I

In our adversarial system of adjudication, we follow the principle of party presentation. As this Court stated in *Greenlaw v. United States*, 554 U. S. 237 (2008), “in both civil and criminal cases, in the first instance and on appeal . . . , we rely on the parties to frame the issues for decision and assign to courts the role of neutral arbiter of matters the parties present.” *Id.*, at 243. In criminal cases, departures from the party presentation principle have usually occurred “to protect a *pro se* litigant's rights.” *Id.*, at 244; see, e. g., *Castro v. United States*, 540 U. S. 375, 381–383 (2003) (affirming courts' authority to recast *pro se* litigants' motions to “avoid an unnecessary dismissal” or “inappropriately stringent application of formal labeling requirements, or to create a better correspondence between the substance of a *pro se* motion's claim and its underlying legal basis” (citation omitted)). But as a general rule, our system “is designed around the premise that [parties represented by competent counsel] know what is best for them, and are responsible for advanc-

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ing the facts and argument entitling them to relief.” *Id.*, at 386 (Scalia, J., concurring in part and concurring in judgment).³

In short: “[C]ourts are essentially passive instruments of government.” *United States v. Samuels*, 808 F. 2d 1298, 1301 (CA8 1987) (Arnold, J., concurring in denial of reh’g en banc). They “do not, or should not, sally forth each day looking for wrongs to right. [They] wait for cases to come to [them], and when [cases arise, courts] normally decide only questions presented by the parties.” *Ibid.*

The party presentation principle is supple, not ironclad. There are no doubt circumstances in which a modest initiating role for a court is appropriate. See, e. g., *Day v. McDonough*, 547 U. S. 198, 202 (2006) (federal court had “authority, on its own initiative,” to correct a party’s “evident miscalculation of the elapsed time under a statute [of limitations]” absent “intelligent waiver”).⁴ But this case scarcely fits that bill. To explain why that is so, we turn first to the proceedings in the District Court.

In July 2010, a grand jury returned a multicount indictment against Sineneng-Smith, including three counts of violating § 1324, three counts of mail fraud in violation of 18 U. S. C. § 1341, and two counts of willfully subscribing to a false tax return in violation of 26 U. S. C. § 7206(1). Sineneng-Smith pleaded guilty to the tax-fraud counts, App. to Pet. for Cert. 78a–79a, and did not pursue on appeal the two mail-fraud counts on which she was ultimately convicted.

³See Kaplan, Civil Procedure—Reflections on the Comparison of Systems, 9 Buffalo L. Rev. 409, 431–432 (1960) (U. S. system “exploits the free-wheeling energies of counsel and places them in adversary confrontation before a detached judge”; “German system puts its trust in a judge of paternalistic bent acting in cooperation with counsel of somewhat muted adversary zeal”).

⁴In an addendum to this opinion, we list cases in which this Court has called for supplemental briefing or appointed *amicus curiae* in recent years. None of them bear any resemblance to the redirection ordered by the Ninth Circuit panel in this case.

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We therefore concentrate this description on her defenses against the § 1324 charges.

Before trial, Sineneng-Smith moved to dismiss the § 1324 counts. Motion to Dismiss in No. 10-cr-414 (ND Cal.). She asserted first that the conduct with which she was charged—advising and assisting aliens about labor certifications—is not proscribed by § 1324(a)(1)(A)(iv) and (B)(i). Being hired to file lawful applications on behalf of aliens already residing in the United States, she maintained, did not “encourage” or “induce” them to remain in this country. *Id.*, at 7–13. Next, she urged, alternatively, that clause (iv) is unconstitutionally vague and therefore did not provide fair notice that her conduct was prohibited, *id.*, at 13–18, or should rank as a content-based restraint on her speech, *id.*, at 22–24. She further asserted that she has a right safeguarded to her by the Petition and Free Speech Clauses of the First Amendment to file applications on her clients’ behalf. *Id.*, at 20–25. Nowhere did she so much as hint that the statute is infirm, not because her own conduct is protected, but because it trenches on the First Amendment sheltered expression of others.

The District Court denied the motion to dismiss, holding that Sineneng-Smith could “encourag[e]” noncitizens to remain in the country, within the meaning of § 1324(a)(1)(A)(iv), “[b]y suggesting to [them] that the applications she would make on their behalf, in exchange for their payments, would allow them to eventually obtain legal permanent residency in the United States.” App. to Pet. for Cert. 73a. The court also rejected Sineneng-Smith’s constitutional arguments, reasoning that she was prosecuted, not for filing clients’ applications, but for falsely representing to noncitizens that her efforts, for which she collected sizable fees, would enable them to gain lawful status. *Id.*, at 75a.

After a 12-day trial, the jury found Sineneng-Smith guilty on the three § 1324 counts charged in the indictment, along with the three mail-fraud counts. App. 118–121. Sineneng-

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Smith then moved for a judgment of acquittal. She renewed, “almost verbatim,” the arguments made in her motion to dismiss, App. to Pet. for Cert. 65a, and the District Court rejected those arguments “[f]or the same reasons as the court expressed in its order denying Sineneng-Smith’s motion to dismiss,” *ibid.* She simultaneously urged that the evidence did not support the verdicts. Motion for Judgt. of Acquittal in No. 10–cr–414 (ND Cal.), at 1–14. The District Court found the evidence sufficient as to two of the three § 1324 counts and two of the three mail-fraud counts. App. to Pet. for Cert. 67a.⁵

Sineneng-Smith’s appeal to the Ninth Circuit from the District Court’s § 1324 convictions commenced unremarkably. On brief and at oral argument, she reasserted the self-regarding arguments twice rehearsed, initially in her motion to dismiss, and later in her motion for acquittal. Brief for Appellant in No. 15–10614 (CA9), at 9–27, 35–41; Recording of Oral Arg. (Apr. 18, 2017), at 37:00–39:40; see *supra*, at 377. With the appeal poised for decision based upon the parties’ presentations, the appeals panel intervened. It ordered further briefing, App. 122–124, but not from the parties. Instead, it named three organizations—“the Federal Defender Organizations of the Ninth Circuit (as a group)[,] the Immigrant Defense Project[,], and the National Immigration Project of the National Lawyers Guild”—and invited them to file *amicus* briefs on three issues:

“1. Whether the statute of conviction is overbroad or likely overbroad under the First Amendment, and if so, whether any permissible limiting construction would cure the First Amendment problem?

“2. Whether the statute of conviction is void for vagueness or likely void for vagueness, either under the

⁵The court sentenced Sineneng-Smith to 18 months on each of the remaining counts; three years of supervised release on the § 1324 and mail-fraud counts; and one year of supervised release on the filing of false tax returns count, all to run concurrently. She was also ordered to pay \$43,550 in restitution, a \$15,000 fine, and a \$600 special assessment.

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First Amendment or the Fifth Amendment, and if so, whether any permissible limiting construction would cure the constitutional vagueness problem?

“3. Whether the statute of conviction contains an implicit *mens rea* element which the Court should enunciate. If so: (a) what should that *mens rea* element be; and (b) would such a *mens rea* element cure any serious constitutional problems the Court might determine existed?” *Ibid.*

Counsel for the parties were permitted, but “not required,” to file supplemental briefs “*limited to responding to any and all amicus/amici briefs.*” *Id.*, at 123 (emphasis added). Invited *amici* and *amici* not specifically invited to file were free to “brief such further issues as they, respectively, believe the law and the record calls for.” *Ibid.* The panel gave invited *amici* 20 minutes for argument, and allocated only 10 minutes to Sineneng-Smith’s counsel. Reargument Order in No. 15–10614 (CA9), Doc. No. 92. Of the three specified areas of inquiry, the panel reached only the first, holding that § 1324(a)(1)(A)(iv) was facially overbroad under the First Amendment, 910 F. 3d, at 483–485, and was not susceptible to a permissible limiting construction, *id.*, at 472, 479.

True, in the redone appeal, Sineneng-Smith’s counsel adopted without elaboration counsel for *amici*’s overbreadth arguments. See Supplemental Brief for Appellant in No. 15–10614 (CA9), p. 1. How could she do otherwise? Understandably, she rode with an argument suggested by the panel. In the panel’s adjudication, her own arguments, differently directed, fell by the wayside, for they did not mesh with the panel’s overbreadth theory of the case.

II

No extraordinary circumstances justified the panel’s takeover of the appeal. Sineneng-Smith herself had raised a vagueness argument and First Amendment arguments homing in on her own conduct, not that of others. Electing not

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to address the party-presented controversy, the panel projected that § 1324(a)(1)(A)(iv) might cover a wide swath of protected speech, including political advocacy, legal advice, even a grandmother’s plea to her alien grandchild to remain in the United States. 910 F. 3d, at 483–484.⁶ Nevermind that Sineneng-Smith’s counsel had presented a contrary theory of the case in the District Court, and that this Court has repeatedly warned that “[i]nvalidation for [First Amendment] overbreadth is ‘strong medicine’ that is not to be ‘casually employed.’” *United States v. Williams*, 553 U. S. 285, 293 (2008) (quoting *Los Angeles Police Dept. v. United Reporting Publishing Corp.*, 528 U. S. 32, 39 (1999)).

As earlier observed, see *supra*, at 376, a court is not hide-bound by the precise arguments of counsel, but the Ninth Circuit’s radical transformation of this case goes well beyond the pale.

* * *

For the reasons stated, we vacate the Ninth Circuit’s judgment and remand the case for reconsideration shorn of the overbreadth inquiry interjected by the appellate panel and bearing a fair resemblance to the case shaped by the parties.

It is so ordered.

**Addendum of cases, 2015–2020, in which this Court called for
supplemental briefing or appointed
*amicus curiae***

This Court has sought supplemental briefing: to determine whether a case presented a controversy suitable for the

⁶The Solicitor General maintained that the statute does not reach protected speech. Brief for United States 32. In the Government’s view, § 1324(a)(1)(A)(iv) should be construed to prohibit only speech facilitating or soliciting illegal activity, thus falling within the exception to the First Amendment for speech integral to criminal conduct. *Id.*, at 22–26, 31 (citing *United States v. Williams*, 553 U. S. 285, 298 (2008)).

Addendum to opinion of the Court

Court's review, *Trump v. Mazars USA, LLP*, 590 U.S. 921 (ordering briefing on application of political question doctrine and related justiciability principles); *Frank v. Gaos*, 586 U.S. 995 (2018) (ordering briefing on Article III standing); *Wittman v. Personhuballah*, 576 U.S. 1093 (2015) (same); Docket Entry in *Gloucester County School Bd. v. G. G.*, O. T. 2016, No. 16–273 (Feb. 23, 2017) (ordering briefing on intervening Department of Education and Department of Justice guidance document); *Kingdomware Technologies, Inc. v. United States*, 577 U.S. 970 (2015) (ordering briefing on mootness); to determine whether the case could be resolved on a basis narrower than the question presented, *Zubik v. Burwell*, 578 U.S. 901 (2016) (ordering briefing on whether the plaintiffs could obtain relief without entirely invalidating challenged federal regulations); and to clarify an issue or argument the parties raised, *Google LLC v. Oracle America, Inc.*, 590 U.S. 928 (ordering further briefing on the parties' dispute over the standard of review applicable to the question presented); *Babb v. Wilkie*, 589 U.S. 1164 (2020) (ordering briefing on an assertion counsel made for the first time at oral argument about alternative remedies available to the plaintiff); *Sharp v. Murphy*, reported *sub nom. Carpenter v. Murphy*, 586 U.S. 1046 (2018) (ordering briefing on the implications of the parties' statutory interpretations).

In rare instances, we have ordered briefing on a constitutional issue implicated, but not directly presented, by the question on which we granted certiorari. See *Jennings v. Rodriguez*, 580 U.S. 1040 (2016) (in a case about availability of a bond hearing under a statute mandating detention of certain noncitizens, briefing ordered on whether the Constitution requires such a hearing); *Johnson v. United States*, 574 U.S. 1069 (2015) (in a case involving interpretation of the Armed Career Criminal Act's residual clause, briefing ordered on whether that clause is unconstitutionally vague). But in both cases, the parties had raised the relevant constitutional challenge in lower courts; the question was not in-

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terjected into the case for the first time by an appellate forum. In *Jennings*, moreover, the parties' statutory arguments turned expressly on the constitutional issue. *Jennings v. Rodriguez*, 583 U. S. 281 (2018). And in *Johnson*, although this Court had interpreted the Act's residual clause four times in the preceding nine years, there still remained "pervasive disagreement" in the lower courts about its application. *Johnson v. United States*, 576 U. S. 591, 601 (2015).

We have appointed *amicus curiae*: to present argument in support of the judgment below when a prevailing party has declined to defend the lower court's decision or an aspect of it, *Seila Law LLC v. Consumer Financial Protection Bureau*, 589 U. S. 1041 (2019); *Holguin-Hernandez v. United States*, 588 U. S. 918 (2019); *Culbertson v. Berryhill*, 584 U. S. 999 (2018); *Lucia v. SEC*, 583 U. S. 1099 (2018); *Beckles v. United States*, 579 U. S. 965 (2016); *Welch v. United States*, 577 U. S. 1098 (2016); *McLane Co. v. EEOC*, 580 U. S. 985 (2016); *Green v. Brennan*, 576 U. S. 1087 (2015); *Reyes Mata v. Lynch*, reported *sub nom. Reyes Mata v. Holder*, 574 U. S. 1118 (2015); and to address the Court's jurisdiction to decide the question presented, *Montgomery v. Louisiana*, 575 U. S. 933 (2015).

JUSTICE THOMAS, concurring.

I agree with the Court that the Ninth Circuit abused its discretion in reaching out to decide whether 8 U. S. C. § 1324(a)(1)(A)(iv) is unconstitutionally overbroad. In my view, however, the Court of Appeals' decision violates far more than the party presentation rule. The merits of that decision also highlight the troubling nature of this Court's overbreadth doctrine. That doctrine provides that "a law may be invalidated as overbroad if 'a substantial number of its applications are unconstitutional, judged in relation to the statute's plainly legitimate sweep.'" *United States v. Stevens*, 559 U. S. 460, 473 (2010) (quoting *Washington State Grange v. Washington State Republican Party*, 552 U. S. 442,

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449, n. 6 (2008)). Although I have previously joined the Court in applying this doctrine, I have since developed doubts about its origins and application. It appears that the overbreadth doctrine lacks any basis in the Constitution's text, violates the usual standard for facial challenges, and contravenes traditional standing principles. I would therefore consider revisiting this doctrine in an appropriate case.

I

This Court's overbreadth jurisprudence is untethered from the text and history of the First Amendment. It first emerged in the mid-20th century. In *Thornhill v. Alabama*, 310 U.S. 88 (1940), the Court determined that an antipicketing statute was "invalid on its face" due to its "sweeping proscription of freedom of discussion," *id.*, at 101–105. The Court rejected the State's argument that the statute was constitutional because it was "limited or restricted in its application" to proscribable "violence and breaches of the peace [that] are the concomitants of picketing." *Id.*, at 105. Without considering whether the defendant's actual conduct was entitled to First Amendment protection, the Court concluded that the law was unconstitutional because it "d[id] not aim specifically at evils within the allowable area of state control but, on the contrary, swe[pt] within its ambit other activities that in ordinary circumstances constitute an exercise of freedom of speech or of the press." *Id.*, at 97.

Since then, the Court has invoked this rationale to facially invalidate a wide range of laws, from statutes enacted by Congress, see, e.g., *Ashcroft v. Free Speech Coalition*, 535 U.S. 234 (2002), to measures passed by city officials, see, e.g., *Board of Airport Comm'rs of Los Angeles v. Jews for Jesus, Inc.*, 482 U.S. 569 (1987). These laws covered a variety of subjects, from nudity in drive-in movies, *Erznoznik v. Jacksonville*, 422 U.S. 205 (1975), to charitable solicitations, *Schaumburg v. Citizens for a Better Environment*, 444 U.S. 620 (1980), to depictions of animal cruelty, *Stevens, supra*, at

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460. And all these laws were considered unconstitutional not because they necessarily violated an individual's First Amendment rights but "because of a judicial prediction or assumption that the statute's very existence *may* cause [some citizens] to refrain from constitutionally protected [activity]." *Broadrick v. Oklahoma*, 413 U. S. 601, 612 (1973) (emphasis added); see also *Erznoznik, supra*, at 216.

Notably, this Court has not attempted to ground its void-for-overbreadth rule in the text or history of the First Amendment. It did not do so in *Thornhill*, and it has not done so since. Rather, the Court has justified this doctrine solely by reference to policy considerations and value judgments. See *New York v. Ferber*, 458 U. S. 747, 768–769 (1982). It has stated that facially invalidating overbroad statutes is sometimes necessary because "[First Amendment] freedoms are delicate and vulnerable, as well as supremely precious in our society," and thus "need breathing space to survive."* *NAACP v. Button*, 371 U. S. 415, 433 (1963). And, in the context of the freedom of speech, the Court has justified the overbreadth doctrine's departure from traditional principles of adjudication by noting free speech's "transcendent value to all society, and not merely

*The Court often discusses the doctrine as applying in the context of "First Amendment rights" more generally. *Broadrick v. Oklahoma*, 413 U. S. 601, 611–613 (1973); see also *NAACP v. Button*, 371 U. S. 415, 433 (1963) (discussing "the First Amendment freedoms"). Such arguments are typically raised in free speech cases, but the Court has occasionally entertained overbreadth challenges invoking the freedom of the press, see, e. g., *Thornhill v. Alabama*, 310 U. S. 88 (1940), and the freedom of association, see, e. g., *Keyishian v. Board of Regents of Univ. of State of N. Y.*, 385 U. S. 589 (1967). Curiously, however, the Court has never applied this doctrine in the context of the First Amendment's Religion Clauses. In fact, the Court currently applies a far less protective standard to free exercise claims, upholding laws that substantially burden religious exercise so long as they are neutral and generally applicable. See *Employment Div., Dept. of Human Resources of Ore. v. Smith*, 494 U. S. 872 (1990). The Court has never acknowledged, much less explained, this discrepancy.